

**UNITED STATES INTERNATIONAL TRADE COMMISSION
WASHINGTON, D.C.**

**Before the Honorable Doris Johnson Hines
Administrative Law Judge**

In the Matter of:

CERTAIN WEARABLE DEVICES

Investigation No. 337-TA-1478

**RESPONDENTS' MOTION *IN LIMINE* NO. 1: TO PRECLUDE SAMSUNG
FROM PRESENTING UNTIMELY INFRINGEMENT ARGUMENTS
RELATING TO U.S. PATENT NO. 10,231,675**

GROUND RULE 5.1 CERTIFICATION

Pursuant to Ground Rule 5.1, Oura states that it made reasonable, good-faith efforts to resolve the matter with Samsung prior to filing the Motion. Samsung has indicated that it opposes this motion and agrees that the parties are at an impasse.

I. INTRODUCTION

Respondents Ouraring Inc. and Oura Health Oy (collectively, “Oura”) respectfully move to preclude Complainants Samsung Electronics Co., Ltd. and Samsung Electronics America, Inc. (collectively, “Samsung”) from presenting new testimony or argument relating to new theories of infringement of claims 13 and 15 of U.S. Patent No. 10,231,675 (the “’675 Patent”) recently previewed in Samsung’s prehearing brief (EDIS Doc. ID 891086; “CPreHB”). Specifically, in its prehearing brief, Samsung newly contends (1) that the Accused Products directly infringe the ’675 Patent through Oura’s own “testing and use” of the products, and (2) that Oura induces infringement of the ’675 Patent through advertising. Because neither theory of infringement of the ’675 Patent was disclosed during fact or expert discovery in this Investigation, Oura respectfully requests that Samsung be precluded from making these arguments or eliciting previously undisclosed testimony from witnesses about such theories of infringement at the hearing.

II. ARGUMENT

Samsung previews two new infringement theories for claims 13 and 15 of the ’675 Patent in its prehearing brief, relating to supposed direct infringement by Oura’s own “testing and use” of the Accused Products and supposed induced infringement through advertising the Accused Products. *See* CPreHB at 16, n. 3. Both theories are new, and Samsung is properly precluded from offering argument or evidence in support of such theories at the evidentiary hearing.

A. *Samsung’s New Theory of Direct Infringement by “Oura’s Own Testing and Use”*

Until Samsung’s prehearing brief, the only supposed act of direct infringement of method claims 13 and 15 of the ’675 Patent alleged by Samsung was the use, by users (*i.e.*, end consumers), of the Accused Products. *See, e.g.*, Ex. B (Exhibit 3 to Samsung’s Final Infringement Contentions)

[REDACTED]

at 1 (“The Oura Accused Product includes determining whether an electronic device is worn on a part of a user’s body using at least one first sensor of the electronic device.”). Indeed, this theory remains part of Samsung’s infringement contentions in its Prehearing Brief. See CPreHB at 16 (“the Accused Products perform each step of method Claims 13 and 15 when worn in the ordinary course by a user”).

But now Samsung also introduces a new theory: Oura itself directly infringes claims 13 and 15 by its own “testing and use” of the Accused Products in some unspecified manner:

Oura provided extensive evidence in its affirmative -1398 and -1468 Investigations of its own use and testing in the United States in alleging it satisfied the DI requirement in those cases. Oura’s own testing and use constitutes direct infringement.

CPreHB at 16. This theory of infringement has no basis in any contention that has been made by Samsung, nor was any supposed “testing and use” by Oura analyzed by Samsung’s infringement expert. See generally, Ex. C (Welch Infringement Report). In short, Oura’s own testing or use of its own products for product development purposes was never once mentioned in the context of direct infringement.

That Oura has relied on its own testing of the Accused Products in prior investigations (Samsung’s only apparent support for this contention) does not show that Oura tested and used the particular method now being accused of infringement by Samsung. Nor does it excuse Samsung from needing to provide particular infringement contentions during discovery. Oura could have explored such accusations during discovery, but was deprived of a chance to do so. “Testing and use” by Oura is a new theory of direct infringement by Samsung, and is therefore properly excluded. See *Certain Touch-Controlled Mobile Devices, Computers, and Components Thereof*, Inv. No. 337-TA-1162, Order No. 50 at 2-3 (June 2, 2020) (EDIS Doc. ID 712789) (“Neodron fails to identify any language in either Dr. Broglioli’s expert report or his deposition corresponding

[REDACTED]

to this specific assertion [of infringement]... Dr. Brogioli is precluded from offering testimony or other evidence in support of the assertion made in the second sentence of footnote 31 of Neodron’s prehearing brief”); *Certain Audio Processing Hardware, Software, and Prods. Containing the Same*, Inv. No. 337-TA-1026, Order No. 58, 2017 WL 4216995, at *3-4 (Aug. 15, 2017) (EDIS Doc. ID 622876) (“[T]he indirect infringement contentions disclosed in Andrea’s pre-hearing brief were untimely disclosed. A party cannot rely on contentions in its prehearing brief that have not been timely disclosed during discovery.”).

Moreover, because infringement-by-testing-and-use is a new theory, a new legal complication (and fatal flaw in Samsung’s allegations) will arise if the theory goes forward which Oura has not otherwise had a chance or reason to raise. Namely, if the supposed act of direct infringement is testing and use by Oura of certain examples of the Accused Products, the Oura rings imported for consumers are not used by Oura for this testing or use, and are therefore not “articles that infringe.” *See* 19 U.S.C. § 1337(b)(1). The relatively rare instances of a violation of Section 337 occurring through acts of direct infringement by respondents are inapplicable, as in those instances, all of the imported products were used by the respondents. *See, e.g., Certain Blood Cholesterol Testing Strips & Associated Sys. Containing the Same*, Inv. No. 337-TA-1116, Comm. Op. at 29-31 (May 1, 2020) (EDIS Doc. ID 709361) (all accused imported articles were used by respondent at its own U.S. laboratories to analyze fluid samples) (citing *Certain Apparatus for the Production of Copper Rod*, Inv. No. 337-TA-52, Comm’n Op. at 18 (Nov. 1979) (EDIS Doc. ID 217930) (all accused products were used by respondents during installation and start-up operations at customer sites)).¹ But here, Oura does not itself ever use the vast majority of the rings imported

¹ Oura wishes to proactively acknowledge that its opposition to Samsung’s motion for summary determination (EDIS Doc. ID 890641) stated that “a violation on the basis of a method claim can only occur as a result of the complainant proving indirect infringement [citations omitted].” This

into the United States. Thus, even if Samsung's theory is correct, there is no allegation that the Accused Products currently being imported for sale to consumers are being used by Oura itself, and thus these are not products that violate Section 337. This is not a legal dispute that needs to be decided at the present time—the proper course is to instead prevent the introduction of Samsung's new theory on the basis that it was not disclosed during discovery as required—but highlights a considerable problem in allowing this new theory of direct infringement to proceed.

In sum, Samsung should be precluded from offering evidence and argument that the Accused Products directly infringe claims 13 and 15 of the '675 Patent by Oura's "testing and use" of particular rings in the United States.

B. Samsung's New Theory of Induced Infringement

Samsung's prehearing brief also includes a single statement, in a footnote, that "Moreover... Oura's advertising of the patented method, inducing users to use the patented method to measure SpO2 during sleep, constitutes induced infringement." CPreHB at 16 n. 3.

This is a new theory from Samsung, and should not be allowed to be presented at the evidentiary hearing. Samsung has never alleged induced infringement of the '675 Patent through advertising of SpO2 measurements during sleep, and even now the supposed link between allegations of advertising and the specific, complete method that Samsung alleges practices its patent (which goes well beyond merely measuring SpO2 during sleep, and includes, for example, finger detection) is unclear.

statement is true where, as was previously the case in this Investigation, the contemplated performer of the method is the end user of an imported article—nevertheless, it was an inadvertent overstatement if considered in the abstract, as there exists a previously-inapplicable exception for direct infringement where the respondent itself is the contemplated performer of the method.

The only allegation of induced infringement that Samsung has made in this entire Investigation was a single boilerplate sentence in their Complaint that applied equally to all asserted claims and all asserted patents:

On information and belief, Respondents also intend and actively induce their customers, distributors, and/or end users of the Accused Products to directly infringe at least one of the Asserted Claims of the '359, '677, '675, and '789 patents at least by providing instructions explaining how to use the Accused Products after importation into the United States and encouraging their use in that manner, as well as doing so through their website at <https://support.ouraring.com/hc/en-us/articles/360025428394-Product-Safety-Use>. See Exhibit 21 (last accessed December 12, 2025).

Complaint at ¶ 32. And even this statement in Samsung's Complaint does not discuss Oura's supposed "advertising of the patented method," much less the "the patented method to measure SpO2 during sleep" now alleged by Samsung.

Crucially, allegations of induced infringement have appeared nowhere in Samsung's infringement contentions in response to Oura's interrogatory asking for any theories of induced infringement to be described with particularity. See Ex. A (Samsung's Final Infringement Contentions) at 6-8. Rather, Samsung's final infringement contentions merely incorporate by reference an attached infringement chart (*id.*), and this claim chart in turn makes no allegations of induced infringement, never mentions advertisement, and certainly never makes allegations that any particular advertisements induce practice of the method it accuses for the '675 Patent. See Ex. B (Exhibit 3 to Samsung's Final Infringement Contentions). For example, the attached infringement chart merely states the following:

- "To the extent that the preamble is limiting, the Oura Accused Product comprises a method..."
- "The Oura Accused Product includes determining whether an electronic device is worn on a part of a user's body using at least one first sensor of the electronic device..."

- “The Oura Accused Product includes acquiring first information on a motion of the electronic device using at least a part of the at least one first sensor for a second period of time shortly before and/or immediately after a first period of time when it is determined that the electronic device is worn on a part of the user’s body...”

Id. at 1, 15. Advertisements are never once mentioned in Samsung’s infringement contentions. Nor is inducement of the ’675 Patent mentioned in any form.

The subsequent infringement expert report served by Samsung likewise did not even mention induced infringement, except in a section explaining the expert’s understanding of legal standards in the abstract with no conclusion or analysis of induced infringement of the ’675 Patent. *See generally*, Ex. C (Welch Infringement Report). And while Dr. Welch does factually note (a single time) that “Oura advertises that the Oura Ring 4 uses red and infrared LEDs to measure blood oxygen levels during sleep” (*id.* at ¶ 88), this is made without any allegation of inducement, is made in an introductory section common to all analyzed patents explaining the Accused Products generally, and does not show advertisement of the particular method accused of infringing the ’675 Patent. The context of this statement shows that was instead merely intended to show the features of the Accused Products.

Oura is still in the dark as to what Samsung intends to argue and what advertisements it intends to use to show alleged inducement. Allowing a new theory of induced infringement at this stage in the Investigation would therefore deeply prejudice Oura. Accordingly, Samsung should be prevented from introducing evidence and argument concerning its new inducement theory for the ’675 Patent. *See Certain Touch-Controlled Mobile Devices*, Inv. No. 337-TA-1162, Order No. 50 at 2-3; *Certain Audio Processing Hardware, Software, and Prods. Containing the Same*, Inv. No. 337-TA-1026, Order No. 58, 2017 WL 4216995, at *3-4.

III. CONCLUSION

In sum, Samsung has improperly presented new infringement theories of claims 13 and 15 of the '675 Patent in its prehearing brief. Samsung should be precluded from making arguments or eliciting previously undisclosed testimony from witnesses that the Accused Products directly infringe the '675 Patent through Oura's own "testing and use" of the products or that Oura induces infringement of the '675 Patent through its advertising.

Dated: August 24, 2026

Respectfully submitted,

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**EXHIBIT A
REDACTED
IN ENTIRETY**

**EXHIBIT B
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**EXHIBIT C
REDACTED
IN ENTIRETY**

CERTIFICATE OF SERVICE

I hereby certify that a copy of the foregoing **PUBLIC VERSION OF RESPONDENTS' MOTION *IN LIMINE* NO. 1: TO PRECLUDE SAMSUNG FROM PRESENTING UNTIMELY INFRINGEMENT ARGUMENTS RELATING TO U.S. PATENT NO. 10,231,675** was served upon the following as indicated below on August 31, 2026:

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